



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

February 24, 2010

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Carlos Medina**
Tax Registry No. 915142
25 Precinct
Disciplinary Case No. 83770/08

CHAN

The above named member of the service appeared before Assistant Deputy Commissioner David S. Weisel on August 6, 2009 and was charged with the following:

DISCIPLINARY CASE NO. 83770/08

1. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off-duty, on or about and between May 10, 2005 through October 13, 2006, in the confines of Kings County, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so, to wit: said officer worked as a security guard for Albee Square Mall.

P.G. 205-40, Page 1, Paragraph 1

**OFF-DUTY EMPLOYMENT
PERSONNEL MATTERS**

2. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off-duty, on or about October 13, 2006, within the confines of Kings County, having been involved in an unusual police occurrence as a security guard, failed to notify the Patrol Supervisor, Precinct of occurrence, about said incident.

P.G. 212-32, Page 1, Paragraph 2

OFF-DUTY INCIDENTS

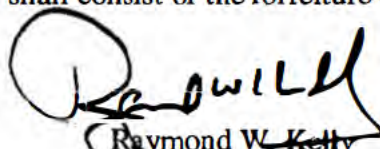
3. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off duty, on or about October 13, 2006, within the confines of Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: having been involved in an unusual police occurrence, failed to identify himself as a New York City Police Officer to Uniformed Members of the Service responding.

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

In a Memorandum dated November 25, 2009, Assistant Deputy Commissioner Weisel accepted the Respondent's Pleading Guilty to Specification No. 1, and found Respondent Medina GUILTY of Specification Nos. 2 and 3. Assistant Deputy Commissioner Weisel recommended that P.O. Medina forfeit ten (10) Vacation days.

Having read the Memorandum and analyzed the facts of this instant matter, I approve the findings, but disapprove the penalty. P.O. Medina's misconduct here merits a greater penalty. Therefore, the disciplinary penalty shall consist of the forfeiture of twenty (20) Vacation days.


Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

November 25, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Carlos Medina
Tax Registry 915142
25 Precinct
Disciplinary Case No. 83770/08

The above-named member of the Department appeared before the Court on August 6, 2009, charged with the following:

1. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off-duty, on or about and between May 10, 2005 through October 13, 2006, in the confines of Kings County, did wrongfully and without just cause engage in off-duty employment without authority or permission to do so, to wit: said officer worked as a security guard for Albee Square Mall.

P.G. 205-40, Page 1, Paragraph 1 – OFF-DUTY EMPLOYMENT
PERSONNEL MATTERS

2. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off-duty, on or about October 13, 2006, within the confines of Kings County, having been involved in an unusual police occurrence as a security guard, failed to notify the Patrol Supervisor, Precinct of occurrence, about said incident.

P.G. 212-32, Page 1, Paragraph 2 – OFF-DUTY INCIDENTS

3. Said Police Officer Carlos Medina, assigned to the 25 Precinct, while off-duty, on or about October 13, 2006, within the confines of Kings County, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department, to wit: having been involved in an unusual police occurrence, failed to identify himself as a New York City Police Officer to Uniformed Members of the Service responding.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

The Department was represented by Penny Bluford-Garrett, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, pleaded Guilty to Specification No. 1 and testified in mitigation of the penalty. He pleaded Not Guilty to Specification Nos. 2 and 3. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty of Specification No. 1. He is also found Guilty of Specification Nos. 2 and 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Police Officer Donnell Graves as a witness.

Police Officer Donnell Graves

Graves, a seven-year member of the Department, was assigned to the 84 Precinct. On October 16, 2006, he was working a detail at the Fulton Street Mall in Brooklyn. Graves responded to a security office, where the Respondent wanted to make a report of harassment. The Respondent informed Graves that the previous Friday (October 13, 2006), during the course of a dispute, a store vendor threatened to kill him. Graves asked for identification from the Respondent, and the Respondent showed him his Department Identification Card. Graves

prepared a Complaint Report for the Respondent's allegation of harassment (see Department's Exhibit [DX] 2, Complaint Report, signed by Graves' partner Police Officer Cindy Fernandez).

On cross-examination, Graves confirmed that he did not respond to the mail on October 13, 2006, in regard to the incident involving the Respondent and the vendor. The Respondent told Graves that he was making the complaint because his supervisor advised him to. The Respondent told Graves that "apparently over the weekend when he wasn't there," the vendor continued to make threats against him. Graves stated that the Respondent was cooperative at all times during their conversation.

The Respondent's Case

The Respondent testified on his own behalf.

Respondent Police Officer Carlos Medina

The Respondent was a 14-year member of the Department assigned to the 25 Precinct. For three to four years, he engaged in off-duty employment as a customer representative and security guard at the Albee Square Mall in Brooklyn. Before starting that position, he applied for permission to work off-duty employment. He submitted an off-duty employment renewal application (see DX 1, Off-Duty Employment Application, approved May 11, 2004). According to the Respondent, he thought that he had submitted another renewal application the following year. It was "fair to say," however, that after he went "back and looked at [his] records," he discovered that he had not done so. The Respondent asserted that there were people in his command who were aware of his job at the mall.

The Respondent testified that the mall had approximately 15 entrances, including the two main entrances for customers. The mall merchants were permitted to load and unload their merchandise only through the loading dock.

The Respondent testified that while working in the mall in plainclothes on October 13, 2006, the Respondent observed an illegally parked vehicle blocking one of the entrances to the mall. The Respondent observed three on-duty NYPD officers who were assigned to the mall area walking out of Forever 21. The Respondent asked the officers if they could "ask the guy to move his car."

The Respondent followed the officers to the door, where he observed them talking with Thalia Young, the owner of a kiosk in the mall. Young was inside the vehicle, and a man was taking boxes on a hand truck from the vehicle to the door where the Respondent was standing. As the man backed in through the doorway, he backed up onto the Respondent's hand. The man asked the Respondent, "You touching me? Why you touching me?"

The Respondent testified that one of the police officers approached him and asked what was happening. While the officer was present, the man with the hand truck told the Respondent in a loud and boisterous tone, "You are touching me. You think you can touch me. I will kill you. I will kill you. Think I won't? I will kill you."

The Respondent testified that he did not take the man's statement seriously. The Respondent just figured that the man was upset because they were being forced to move their car. The police officer did not have to separate the man from the Respondent. The police officer spoke with the man as they walked back to the car together.

The Respondent remained at the door, getting ready to lock it because it was almost closing time. The police officer that was speaking to the man with the hand truck returned to the

Respondent and asked if an exception could be made in this case. The Respondent decided that he could not let the man bring the hand truck through the front door, but would allow him to carry boxes into the building one at a time. The man and the police officers proceeded to carry the boxes from the vehicle into the mall.

Meanwhile, the Respondent went into the mall to speak with Young, who was still upset about the situation. Young alleged that she was being treated unfairly because she was black, and the Respondent explained that he was simply enforcing mall policy. After two or three minutes, the man approached the Respondent again and said, "Come outside. I will kick your ass." While outside, the police officers spoke again to the man because he was visibly upset. The officers told the Respondent to go inside the mall, which he did. The Respondent then locked the door, as it was closing time.

The Respondent worked at the mall the next day, Saturday, but did not have any contact with the man who had yelled at him. He did not work there on Sunday. On Monday, October 16, 2006, the Respondent was not scheduled to work at the mall. He received a telephone call, however, from his mall supervisor, Samuel Rushing. Rushing informed the Respondent that the man from the incident had been overheard at the mall making threatening statements about the Respondent over the weekend. Rushing also told the Respondent that the mall manager wanted the Respondent to make a report. Another official from Allied Martin, the security company, James Crisham, spoke to the Respondent about the incident and asked him to make a log entry.

The Respondent testified that someone from the security office called Sergeant Rhodes, the community policing (CPOP) liaison. Two police officers, Graves and his partner, came to the mall and met with the Respondent. Graves asked the Respondent for identification, and the Respondent handed him his Department Identification Card. The officers called the patrol

supervisor, and the Respondent came to the 84 Precinct station house. He spoke to a deputy inspector about the incident. An 84 Precinct Patrolmen's Benevolent Association delegate was also present.

The Respondent testified that he did not call his command or the patrol supervisor on October 13, 2006, because he did not consider the incident to be an unusual occurrence. He figured that telling the man not to enter through the front entrance of the mall was just part of his job. Furthermore, although he did not need police assistance, there were police officers already there to handle the situation. None of the officers present at the scene ever asked the Respondent for identification or if he wanted to file a report. The Respondent stated that while he did not identify himself as a member of the service, he assumed that they were aware of that fact since he had met two of the three officers before at mall functions.

On cross-examination, the Respondent conceded that he did not know the names of the police officers who handled the incident in the mall. The entire incident lasted approximately five minutes. The Respondent stated that while Young was upset, she was not yelling. He did not see any reason to call the police over while he was talking to Young.

The Respondent testified that when the man approached him the second time, he told the Respondent, "I will kill you. Think you are bad? I will kill you." In total, the man threatened the Respondent three or four times. At no point, however, did the man initiate physical contact. At the time, the Respondent was in possession of his service firearm, shield, and Department Identification Card. The firearm was covered by the Respondent's shirt. In addition to threatening the Respondent, the man was also cursing. The Respondent could not recall exactly what the man was saying. A lot of what the man said the Respondent could not understand

because he spoke with a heavy accent. The man could have said, "I will fuck you up," but the Respondent did not specifically recall hearing that.

The Respondent testified that after the police officers returned to speak with the man, they asked the Respondent what had happened. The Respondent informed the officers that the man had started yelling again. Because it was closing time, the officers told the Respondent that they would get rid of the man and that the Respondent should lock up. The Respondent had no further interaction with the man or Young.

The Respondent testified that he had heard from other people in the mall that Young was aggressive and boisterous. He never had any problem with her before.

Upon questioning by the Court, the Respondent testified that when he had previously met the two officers that spoke to the angry man, it was at a mall function and he had been introduced to them as a police officer.

FINDINGS AND ANALYSIS

Specification No. 1

The Respondent pleaded Guilty to the charge of working off-duty employment, without authorization, at the Albee Square Mall in Brooklyn between approximately May 10, 2005, and October 13, 2006. As such, the Court finds him Guilty as charged.

Specification Nos. 2 & 3

The question in this case is whether the Respondent, faced with the scenario in question, was obligated to identify himself as a member of the Department, and to contact the Department regarding an unusual occurrence. The Court finds the Respondent Guilty.

The Respondent was working off duty as a security guard at a mall. He stopped a vendor that was trying to bring in merchandise through a pedestrian entrance rather than the loading dock. The vendor became irate and began yelling at the Respondent. He used words that, on their face at the very least, constituted threats to kill the Respondent. The Respondent testified that on-duty police officers working a detail at the mall spoke to the angry individual but did not have to separate him from the Respondent.

The Respondent's counsel portrayed this encounter as falling into the "types of minor disturbances" that arise out of "everyday experience." He asserted that a member is not required to notify the Department "anytime he looks or somebody looks at him cross or he has words with someone who walks by him." The Department asserted that "when someone is repeatedly threatening to kill you that rises to the level of a police incident."

For the purposes of the Patrol Guide, an "unusual police occurrence" can also be termed a "police incident." Here, the Respondent's reporting mandate was triggered by the fact that on-duty police officers became involved in the dispute. In fact, it was when the irate man first began harassing the Respondent that the police officers stepped in and asked what was happening. One of the officers spoke to the man and was able to resolve the situation (or so it was thought at the time) by getting the Respondent to agree that the irate man could bring in the merchandise through the pedestrian entrance this one time. The involvement of on-duty police officers distinguished this encounter from those cases where, it has been held, angry and profane language during an argument regarding a non-Department matter between an off-duty member of the Department and a non-member, without more, did not trigger mandatory reporting. See Case No. 83945/08, signed Apr. 29, 2009 (officer that had an argument with his wife in a bar, including yelling and screaming, leading to them both getting ejected, was not required to report

the incident as an unusual police occurrence). This case is more comparable to *Case Nos. 82537/07 & 83270/07*, signed March 24, 2009. There, an off-duty member working as mall security got into an argument with someone making beer-keg deliveries to a restaurant. The deliverer called the police, who responded. The trial commissioner found the off-duty member guilty of failing to report. The Court noted that the member had testified that in hindsight, he realized the altercation was such that the police responded to the scene and, even if the matter was not criminal in nature, it did amount to a police incident where the presence of a patrol supervisor would have been warranted. Accordingly, the Court finds the Respondent Guilty of Specification 2, failing to notify the Department of the incident (specifically the patrol supervisor in the precinct of occurrence, here the 84 Precinct, because the incident happened within New York City).

The Court also finds the Respondent Guilty of Specification 3, failing to identify himself as New York City Police Officer to the on-duty officers. As noted supra, this was an unusual police occurrence, one in which the vendor threatened to kill the Respondent. At the time, the Respondent was armed with his service weapon under his shirt. The incident had the potential to turn violent if the irate individual had chosen to make good on his threats. It was thus incumbent upon the Respondent to identify himself as a member of the service to the on-duty personnel that were present. It was not enough for the Respondent to assume that they knew he was a Department member just because he had interacted with them in the past at the mall, or because a manager had informed the 84 Precinct that active and retired officers were working as security guards at Albee Square. Additionally, the Respondent did not know their names. Cf. Case Nos. 82537/07 & 83270/07, supra (on-duty police officer that responded to dispute testified that he

knew the respondent was member of service). Accordingly, the Court finds that the Respondent Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222, 240 (1974). The Respondent was appointed to the Department on June 30, 1995. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of engaging in off-duty employment without authorization. He also has been found Guilty of failing to identify himself as a member of service during a dispute that arose in the course of that employment, and of failing to report that dispute to the Department. The Court notes that the Respondent had previously secured approval for the off-duty employment, but it had lapsed. He testified that he thought he had sent in a renewal application, and also that he thought the encounter at the mall did not rise to the level of a police incident. Nonetheless, it is the Respondent's obligation to ensure that he is in compliance with Department rules, without reliance on assumptions about what the truth is.

Accordingly, the Court recommends that the Respondent be penalized with the forfeiture of 10 vacation days. See Case No. 83266/07, signed May 29, 2009 (10 vacation days for member who submitted application to work as limousine driver, but began working before it was approved); cf. Case Nos. 82537/07 & 83270/07 (20 days).

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials



POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner -- Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER CARLOS MEDINA
TAX REGISTRY NO. 915142
DISCIPLINARY CASE NO. 83770/08

For the last three years, the Respondent has received an overall rating of 4.5 "Extremely Competent/Highly Competent" on his annual performance evaluation. He has been awarded two medals for Excellent Police Duty and one for Meritorious Police Duty.

[REDACTED]

[REDACTED] In March 2008, the Respondent was placed on Level-I Disciplinary Monitoring. He has no prior formal disciplinary record.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials